

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

Marine Transport Logistics, Inc. v. CMA CGM, S.A.

JOINT STATUS REPORT

In accordance with the Presiding Officer’s July 7, 2023 Order, Counsel for the respective Parties jointly submit this Joint Status Report. We note that, although both parties express views as to what the Presiding Officer should do, this is a status report (as requested), not a motion by either party.

I. Procedural History

This proceeding was initiated upon the filing of a complaint by Marine Transport Logistics, Inc. (“MTL” or “Complainant”). On March 9, 2023, Respondent CMA CGM, S.A. (“Respondent” or “CMA”) filed a motion (“Motion”) seeking an extension of time to respond to MTL’s request for production of documents and a letter of request pursuant to the Hague Convention. The Presiding Officer issued an order on March 28, 2023, denying the Motion and issuing a revised procedural schedule. CMA appealed the denial of its Motion to the Federal Maritime Commission on April 7, 2023 (“Appeal”); MTL filed a “Response to CMA’s Interlocutory Appeal” (“Response”) on April 17, 2023. As of the date of this Joint Status Report, the Appeal remains pending before the Commission.

II. Status of Discovery

On February 6, 2023, Respondent served Initial Interrogatories, Requests for Admission, and Requests for Documents on Complainant. Complainant served a Request for Documents on Respondent. On March 9, 2023, the Parties exchanged objections and responses to initial discovery requests. MTL produced a small number (25) of files. CMA did not produce any documents for the reasons stated in the Motion. No other discovery activity has occurred.

III. Parties' Positions on Stay of Proceeding

A. Complainant

MTL states that it opposes a stay and refers to its Response filed April 17, 2023, which is attached hereto as **Complainant's Exhibit 1**.

B. Respondent

CMA believes that, whether or not its Appeal created an automatic stay, the only course available to the Presiding Officer is a stay until the Commission rules on the Appeal.¹

First, for the Presiding Officer to even consider allowing the proceeding to move forward, Complainant would have to waive its right to the discovery currently before the Commission, otherwise the Presiding Officer would be in the untenable position of going forward, only to have the proceeding interrupted and potentially need to be redone due to the Commission's decision, no matter whether it affirms the Presiding Officer's opinion or sustains the appeal and requires use of the procedures required by French law.

Respondent, however, is still entitled to discovery that was not provided by Complainant. As Complainant well knows, Respondent believes that both Complainant's initial disclosures and its responses to Respondent's Interrogatories, Requests for Admission and Requests for

¹ Respondent will file a motion to stay the proceeding, if so directed by the Presiding Officer.

Documents were woefully inadequate and plans to file one or more motions to compel.

Respondent is aware of no FMC Rule that would permit the Presiding Officer to terminate Respondent's right to discovery.²

Furthermore, failure to stay the matter would improperly deprive Respondent of its right, under the FMC Rules, the Administrative Procedures Act, and Due Process, to present evidence. Such an end run around the Appeal is thus impermissible.

Finally, if the Presiding Officer does not find the matter is stayed *de facto*, Respondent respectfully notes that the Parties should be given the opportunity to submit a proposed schedule.

Dated: July 25, 2023

Respectfully submitted,

By: /s/ _____

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² Although it could in theory be argued that Respondent was required to make that motion earlier, such action would be inappropriate here, if permissible otherwise, given that neither the Presiding Officer nor the Parties could have possibly understood whether an automatic stay was in effect. Moreover, it would be passing strange to require discovery motions to be made by Respondent without the context of discovery to be provided to Complainant.